implement their choices clumsily, at awful cost. Our Constitution makers aimed at an effective central government, else they would not have come to Philadelphia. But they sought to minimize the risks.

The product of their work had four distinctive features. One of these was limited authority: the federal Bill of Rights and its state counterparts were meant to wall off civil liberties, including private property, from arbitrary governmental action. A second feature was shared powers: federal and state governments had overlapping functions, and within the federal structure, so did President, House, Senate, Supreme Court. A third feature was separated institutions: each power-sharing body had a separate base of political accountability, hence constituency, and these were kept distinct from one another. A fourth feature was legitimation by the symbols of popular sovereignty: the people replaced the monarchy, and this was done in such a way as to clothe institutions with their status, while yielding little to direct democracy.

Throughout, the underlying theme was checks and balances: rights hedging authority, powers checking powers, separate institutions in enforced collaboration, with political accountability divided and legitimacy dispersed. No man was entrusted with unlimited prerogatives; neither was the mob. Instead, a goodly group of men, each with a piece of power, backed by a constituency, would scrutinize each other, balancing each other, as they tried to fit their pieces into governance. Thus human failings might be cancelled out.

Then as now the ultimate expression of authority was war, and there this general pattern was applied with special care. The model evidently was the English royal prerogative as modified by Parliament's control over the purse. Our Constitution-makers modified it further. Congress as a substitute for Parliament would also declare war. The Senate as a parliamentary body was to share in making treaties of alliance or of peace. Our President, as substitute for King, had no prerogative to do these things alone. What he retained, alone, was actual command of such armed forces as Congressional enactments gave him leave to raise and keep. It thus was the intention that recourse to war required a *collaborative* judgment by the whole body of men in national elective office. Presidents could not declare war, congressmen could not deploy the troops. On this as on all lesser issues, these men were to check and balance one another.

Yet from the start of our development under the Constitution, Presidents have sent troops into battle without declarations of war. This has occurred quite regularly since Thomas Jefferson dispatched marines